

25NWCV03351 25NWCV03351

County: los-angeles

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Department: R

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#9

OYOQUE v. SENA, ET AL.

CASE NO.: 25NWCV03351

HEARING: Thursday, July 16, 2026, at 9:30 AM

Defendant CENTURY 21 REAL ESTATE LLC's Demurrer
to Plaintiff MIGUEL OYOQUE's First Amended Complaint is SUSTAINED without
leave to amend.

Moving Party to give notice.

BACKGROUND

On September 22, 2025, Plaintiff MIGUEL OYOQUE ("Plaintiff") filed this
breach of contract action against Defendants NOEL SENA; A.S.K. BROKERAGE dba
EXCELLENCE RE REAL ESTATE HD; CENTURY 21 REAL ESTATE LLC; and DOES 1 through
20, inclusive.

On November 25, 2025, Plaintiff filed his First Amended Complaint.
("FAC").

Plaintiff's FAC asserts the following causes of action:

(1)

Breach of Contract;

(2)

Breach of Guaranty;

(3)

Account Stated;

(4)

Quantum Meruit;

(5)

Accounting; and

(6)

Conversion

On February 9, 2026, the Court granted Plaintiff 30 days leave to amend to file a Second Amended Complaint. Plaintiff's Second Amended Complaint was due by March 13, 2026. Plaintiff failed to file a Second Amended Complaint. Thus, Plaintiff's FAC remains the operative pleading and the Court considers the merits of Defendant CENTURY 21 REAL ESTATE LLC's ("Defendant") demurrer.

Standing

Every action must be prosecuted in the name of the real party in interest, except otherwise provided by statute. (CCP § 367.)

Here, Plaintiff's causes of action seem to arise from a contract between Excellence RE and Excellence RE Real Estate HD (FAC Ex. A.) While Plaintiff alleges to be a party to this contract, Plaintiff's Exhibit A clearly demonstrates otherwise. These contradictory allegations should be disregarded, even on demurrer. (Del E. Webb Corp. v. Structural Materials Co., 123 Cal.App.3d 593, 604 (1981) ["The courts... will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents or allegations contrary to facts which are judicially noticed"].)

Thus, the real party in interest is EXCELLENCE RE REAL ESTATE, not Plaintiff. Accordingly, the remedy lies with EXCELLENCE RE REAL ESTATE, not Plaintiff, even if Plaintiff is

the sole shareholder. (Vinci v. Waste Management, Inc. (1995) 36 Cal.App.4th 1811,1815.) Plaintiff lacks standing to sue and thus Defendant's Demurrer is SUSTAINED.

LEAVE TO AMEND

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC (2015) 244 Cal.App.4th 118, 226.)

Plaintiff has not demonstrated he can successfully amend his FAC. Further, the Plaintiff failed to amend his FAC after the Court granted Plaintiff leave to amend. Thus, the Court believes amendment will be futile.

CONCLUSION

Defendant's
Demurrer is SUSTAINED without leave to amend.